

LVNV FUNDING v. COPPS

21CF13587

PLAINTIFF'S MOTION FOR ENTRY OF JUDGMENT

This is a limited jurisdiction collections case involving a debt of \$2,793.06. Before the Court is an unopposed motion by plaintiff for entry of judgment following this Court's order striking defendant's barren answer with leave to amend. This Court advised that "if no Answer is filed, then plaintiff may proceed via default prove-up." (See Minute Order of 01/07/22.)

Although defendant was given 30 days to file an amended answer, no amended answer appears in the Court file. However, also missing from the Court file is any proof that plaintiff served defendant with notice of the Court's Order. (See CCP §1019.5(a): "when a motion is granted or denied, unless the court otherwise orders, notice of the court's decision or order shall be given by the prevailing party to all other parties"). As such, there is no competent proof that the time to file an amended answer has expired.

Separately, plaintiff contends that it is entitled to a judgment pursuant to CCP §438(g)(4)(C)(i)(B). There is no such section. The proper citation is to §438(h), which provides in pertinent part that if no amended answer is ever filed, "judgment shall be entered forthwith in favor of the moving party." This is premature given that defendant may still have time to file an answer. Moreover, this Court treated the §438 motion as a §435 motion to strike, and specifically advised plaintiff that the proper recourse is to proceed with a default prove-up – which plaintiff may still do.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

LARSON v. MARK TWAIN MEDICAL CENTER

19CV44062

PLAINTIFF'S MOTION FOR CLASS CERTIFICATION

This is a wage/hour dispute involving alleged rounding and rest/meal deficiencies suffered by those in the employ of Mark Twain Medical Center. Before the Court is a continued hearing on plaintiff's motion to certify a proposed class. Since the last hearing, plaintiff has filed a copy of the reporter's transcript and a new appellate case recently certified for publication. While it would be ordinary to seek briefing from both sides regarding the new case authority, the Court believes that the parties have adequately briefed the issues and will take additional time on its own to consider the new information, and revisit the case citations already provided.

Hearing continued to April 29, 2022, at 9:00 a.m. in Dept. 2. No further briefing is permitted unless specific Court permission is granted.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further order shall be required.